

S. No. 1404 H. No. 10615 / 97 OG No. 19, 2705 (May. 7, 2001) ; Standard 11/13/00

[**REPUBLIC ACT NO. 8972, November 07, 2000**]

AN ACT PROVIDING FOR THE BENEFITS AND PRIVILEGES TO SOLO PARENTS AND THEIR CHILDREN, APPROPRIATING FUNDS THEREFOR AND FOR OTHER PURPOSES

Be it enacted by the Senate and House of Representatives of the Philippines in Congress assembled:

SECTION 1. *Title.* - This Act shall be known as the "Solo Parents' Welfare Act of 2000."

SEC. 2. *Declaration of Policy.* - It is the policy of the State to promote the family as the foundation of the nation, strengthen its solidarity and ensure its total development. Towards this end, it shall develop a comprehensive program of services for solo parents and their children to be carried out by the Department of Social Welfare and Development (DSWD), the Department of Health (DOH), the Department of Education, Culture and Sports (DECS), the Department of the Interior and Local Government (DILG), the Commission on Higher Education (CHED), the Technical Education and Skills Development Authority (TESDA), the National Housing Authority (NHA), the Department of Labor and Employment (DOLE) and other related government and nongovernment agencies.

SEC. 3. *Definition of Terms.* - Whenever used in this Act, the following terms shall mean as follows:

a. "Solo parent" - any individual who falls under any of the following categories:

1. A woman who gives birth as a result of rape and other crimes against chastity even without a final conviction of the offender: *Provided*, That the mother keeps and raises the child;
2. Parent left solo or alone with the responsibility of parenthood due to death of spouse;
3. Parent left solo or alone with the responsibility of parenthood while the spouse is detained or is serving sentence for a criminal conviction for at least one (1) year;
4. Parent left solo or alone with the responsibility of parenthood due to physical and/or mental incapacity of spouse as certified by a public medical practitioner;
5. Parent left solo or alone with the responsibility of parenthood due to legal separation or *de facto* separation from spouse for at least one (1) year, as long as he/she is entrusted with the custody of the children;
6. Parent left solo or alone with the responsibility of parenthood due to declaration of nullity or annulment of marriage as decreed by a court or by a

- church as long as he/she is entrusted with the custody of the children;
7. Parent left solo or alone with the responsibility of parenthood due to abandonment of spouse for at least one (1) year;
 8. Unmarried mother/father who has preferred to keep and rear her/his child/children instead of having others care for them or give them up to a welfare institution;
 9. Any other person who solely provides parental care and support to a child or children; and
 10. Any family member who assumes the responsibility of head of family as a result of the death, abandonment, disappearance or prolonged absence of the parents or solo parent.

A change in the status or circumstance of the parent claiming benefits under this Act, such that he/she is no longer left alone with the responsibility of parenthood, shall terminate his/her eligibility for these benefits.

- b. "Children" - refer to those living with and dependent upon the solo parent for support who are unmarried, unemployed and not more than eighteen (18) years of age, or even over eighteen (18) years but are incapable of self-support because of mental and/or physical defect/disability.
- c. "Parental responsibility" - with respect to their minor children shall refer to the rights and duties of the parents as defined in Article 220 of Executive Order No. 209, as amended, otherwise known as the "Family Code of the Philippines."
- d. "Parental leave" - shall mean leave benefits granted to a solo parent to enable him/her to perform parental duties and responsibilities where physical presence is required.
- e. "Flexible work schedule" - is the right granted to a solo parent employee to vary his/her arrival and departure time without affecting the core work hours as defined by the employer.

SEC. 4. *Criteria for Support.* - Any solo parent whose income in the place of domicile falls below the poverty threshold as set by the National Economic and Development Authority (NEDA) and subject to the assessment of the DSWD worker in the area shall be eligible for assistance: *Provided, however,* That any solo parent whose income is above the poverty threshold shall enjoy the benefits mentioned in Sections 6, 7 and 8 of this Act.

SEC. 5. *Comprehensive Package of Social Development and Welfare Services.* -A comprehensive package of social development and welfare services for solo parents and their families will be developed by the DSWD, DOH, DECS, CHED, TESDA, DOLE, NHA and DILG, in coordination with local government units and a nongovernmental organization with proven track record in providing services for solo parents.

The DSWD shall coordinate with concerned agencies, the implementation of the comprehensive package of social development and welfare services for solo parents and their families. The package will initially include:

- a. Livelihood development services which include trainings on livelihood skills, basic business management, value orientation and the provision of seed capital or job placement.

- b. Counseling services which include individual, peer group or family counseling. This will focus on the resolution of personal relationship and role conflicts.
- c. Parent effectiveness services which include the provision and expansion of knowledge and skills of the solo parent on early childhood development, behavior management, health care, rights and duties of parents and children.
- d. Critical incidence stress debriefing which include preventive stress management strategy designed to assist solo parents in coping with crisis situations and cases of abuse.
- e. Special projects for individuals in need of protection which include temporary shelter, counseling, legal assistance, medical care, self-concept or ego-building, crisis management and spiritual enrichment.

SEC. 6. *Flexible Work Schedule.* - The employer shall provide for a flexible working schedule for solo parents: *Provided*, That the same shall not affect individual and company productivity: *Provided, further*, That any employer may request exemption from the above requirements from the DOLE on certain meritorious grounds.

SEC. 7. *Work Discrimination.* - No employer shall discriminate against any solo parent employee with respect to terms and conditions of employment on account of his/her status.

SEC. 8. *Parental Leave.* - In addition to leave privileges under existing laws, parental leave of not more than seven (7) working days every year shall be granted to any solo parent employee who has rendered service of at least one (1) year.

SEC. 9. *Educational Benefits.* - The DECS, CHED and TESDA shall provide the following benefits and privileges:

1. Scholarship programs for qualified solo parents and their children in institutions of basic, tertiary and technical/skills education; and
2. Nonformal education programs appropriate for solo parents and their children.

The DECS, CHED and TESDA shall promulgate rules and regulations for the proper implementation of this program.

SEC. 10. *Housing Benefits.* - Solo parents shall be given allocation in housing projects and shall be provided with liberal terms of payment on said government low-cost housing projects in accordance with housing law provisions prioritizing applicants below the poverty line as declared by the NEDA.

SEC. 11. *Medical Assistance.* - The DOH shall develop a comprehensive health care program for solo parents and their children. The program shall be implemented by the DOH through their retained hospitals and medical centers and the local government units (LGUs) through their provincial/district/city/ municipal hospitals and rural health units (RHUs).

SEC. 12. *Additional Powers and Functions of the DSWD.* - The DSWD shall perform the following additional powers and functions relative to the welfare of solo parents and their families:

a. Conduct research necessary to:

1. develop a new body of knowledge on solo parents;
2. define executive and legislative measures needed to promote and protect the interest of solo parents and their children; and
3. assess the effectiveness of programs designed for disadvantaged solo parents and their children;

b. Coordinate the activities of various governmental and nongovernmental organizations engaged in promoting and protecting the interests of solo parents and their children; and

c. Monitor the implementation of the provisions of this Act and suggest mechanisms by which such provisions are effectively implemented.

SEC. 13. *Implementing Rules and Regulations.* - An inter-agency committee headed by the DSWD, in coordination with the DOH, DECS, CHED, TESDA, DOLE, NHA, and DILG is hereby established which shall formulate, within ninety (90) days upon the effectivity of this Act, the implementing rules and regulations in consultation with the local government units, nongovernment organizations and people's organizations.

SEC. 14. *Appropriations.* - The amount necessary to carry out the provisions of this Act shall be included in the budget of concerned government agencies in the General Appropriations Act of the year following its enactment into law and thereafter.

SEC. 15. *Repealing Clause.* - All laws, decrees, executive orders, administrative orders or parts thereof inconsistent with the provisions of this Act are hereby repealed, amended or modified accordingly.

SEC. 16. *Separability Clause.* - If any provision of this Act is held invalid or unconstitutional, other provisions not affected thereby shall continue to be in full force and effect.

SEC. 17. *Effectivity Clause.* - This Act shall take effect fifteen (15) days following its complete publication in the *Official Gazette* or in at least two (2) newspapers of general circulation.

Approved,

(Sgd.) FRANKLIN M. DRILON

President of the Senate

(Sgd.) MANUEL B. VILLAR JR.

Speaker of the House of Representatives

This Act which is a consolidation of Senate Bill No. 1404 and House Bill No. 10615 was finally passed by the Senate and the House of Representatives on August 30, 2000 and September 26, 2000, respectively.

(Sgd.) OSCAR G. YABES

Secretary of the Senate

(Sgd.) ROBERTO P. NAZARENO

Secretary General House of Representatives

Approved: November 7, 2000.

(Sgd.) JOSEPH E. ESTRADA
President of the Philippines



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